
Vendor Service Agreement (Template)

Northwind Traders, Inc. | Legal Department | Template Version: 6.0 | For internal / mock use only — not a binding agreement

This Vendor Service Agreement (“Agreement”) is entered into as of [Effective Date] (“Effective Date”) by and between **Northwind Traders, Inc.**, a Delaware corporation with offices at 400 Commerce Way, Suite 200, Wilmington, DE 19801 (“Client”), and **[Vendor Legal Name]**, a [State] [entity type] with offices at [Vendor Address] (“Vendor”). Client and Vendor are each a “Party” and together the “Parties.” This is a mock template for internal testing purposes and is not a binding legal document.

1. Scope of Services

Vendor shall provide the services described in one or more Statements of Work (each, an “SOW”) executed by both Parties and incorporated into this Agreement by reference (collectively, the “Services”). In the event of a conflict between the body of this Agreement and an SOW, this Agreement controls unless the SOW expressly states otherwise.

2. Term & Termination

This Agreement commences on the Effective Date and continues for an initial term of twelve (12) months, automatically renewing for successive 12-month terms unless either Party provides written notice of non-renewal at least sixty (60) days before the end of the then-current term. Either Party may terminate this Agreement for material breach if such breach remains uncured thirty (30) days after written notice, or immediately for the other Party's insolvency or assignment for the benefit of creditors.

3. Payment Terms

Client shall pay all undisputed invoiced amounts within thirty (30) days of receipt (“Net 30”). Amounts not paid when due accrue interest at 1.0% per month or the maximum rate permitted by law, whichever is lower. Vendor shall provide reasonably detailed invoices referencing the applicable SOW.

4. Confidentiality

Each Party agrees to protect the other Party's Confidential Information using at least the same degree of care it uses for its own confidential information of similar importance, and no less than reasonable care, and to use such information solely to perform its obligations under this Agreement. This obligation survives termination of this Agreement for a period of five (5) years, or indefinitely for trade secrets.

5. Intellectual Property

Except as expressly set forth in an SOW, each Party retains ownership of its pre-existing intellectual property. Deliverables specifically created for Client under an SOW and paid in full shall be deemed “works made for hire” and owned by Client upon payment; to the extent any such Deliverable does not qualify as a work made for hire, Vendor hereby assigns all right, title, and interest in it to Client.

6. Warranties

Vendor warrants that the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards. EXCEPT AS EXPRESSLY SET FORTH HEREIN, THE SERVICES ARE PROVIDED "AS IS," AND VENDOR DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

7. Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY, INDEMNIFICATION OBLIGATIONS, OR GROSS NEGLIGENCE / WILLFUL MISCONDUCT, NEITHER PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL EXCEED THE FEES PAID OR PAYABLE UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, AND NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES.

8. Indemnification

Vendor shall indemnify, defend, and hold Client harmless from third-party claims arising from Vendor's gross negligence, willful misconduct, or infringement of a third party's intellectual property rights in connection with the Services.

9. Insurance

Vendor shall maintain, at its own expense, commercial general liability insurance of at least \$1,000,000 per occurrence and professional liability (errors & omissions) insurance of at least \$1,000,000 per claim, and shall provide certificates of insurance upon Client's request.

10. Governing Law & Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles. Any dispute arising under this Agreement shall first be escalated to each Party's respective executive sponsor for good-faith resolution before either Party initiates formal legal proceedings.

11. General

This Agreement, together with any executed SOWs, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions. Neither Party may assign this Agreement without the other's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets.

Signatures

	Client: Northwind Traders, Inc.	Vendor: [Vendor Legal Name]
Signature	_____	_____
Name	[Name]	[Name]
Title	[Title]	[Title]

	Client: Northwind Traders, Inc.	Vendor: [Vendor Legal Name]
Date	[Date]	[Date]